

Amended Excerpts

1. Line 6 through 12:

6 **Highlighted Provisions:**

7 This Bill:

8 →expands the definition of "wrongful lien";

9 →provides that if a notice of a ~~§~~ → [reinvestment fee covenant or] ←~~§~~ transfer fee covenant

9a is a

10 wrongful lien, the notice of a ~~§~~ → [reinvestment fee covenant or] ←~~§~~ transfer fee

10a covenant is

11 invalid;

12 →provides additional filing requirements for a homeowner association that records a lien;

2. Line 99 through 104:

99 (b) "Wrongful lien" includes:

100 (i) [-]a document recorded in violation of Subsection 10-20-508(2)(d)[-];

101 (ii) a document that purports to be a notice of transfer fee covenant described in

102 Subsection ~~§~~ → [{57-1-46(7)(b)}] 57-1-46(7) ←~~§~~ or Section 57-1-47 or a

102a document that purports to create,

103 continue, or reestablish a transfer fee covenant as a lien or encumbrance on an

104 owner's interest in real property, if at the time the document was recorded the

3. Line 105 through 111:

105 transfer fee covenant was not enforceable due to the:

106 (A) foreclosure of a trust deed or mortgage that has priority over the transfer fee
107 covenant;

108 (B) ~~§~~ → [{document not being recorded in accordance with}] absence of a
108a previously recorded notice required by ←~~§~~ Subsection 57-1-46(7) or

109 Section 57-1-47; or

110 (C) existence of a recorded rescission, termination, release, waiver, or other
111 document terminating the transfer fee covenant; or